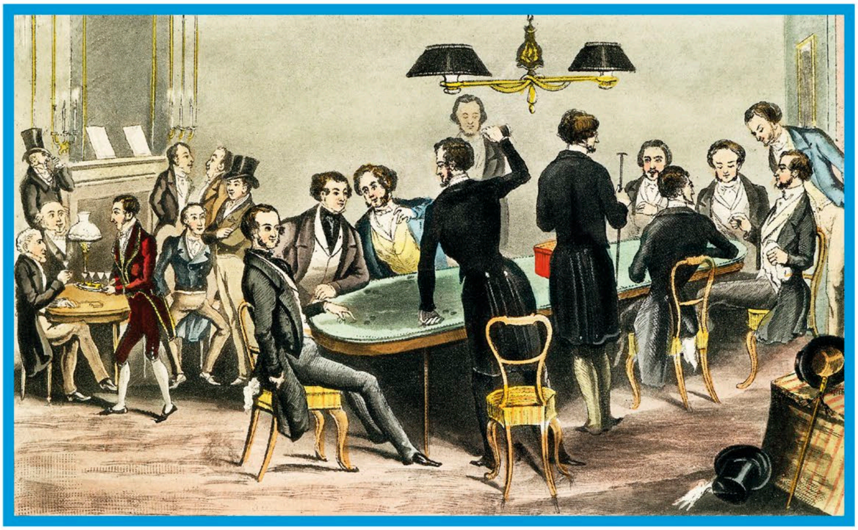
See also: The Cruelty to Animals Act 146–147 ▪ *Hadley* v. *Baxendale* 148–149 ▪ The International Convention Against Doping in Sport 304 ▪ The Match-Fixing Task Force 306–307 ▪ The Open Internet Order 310–313



Aristocrats play dice at Crockford's gentlemen's club in London, 1843. William Crockford, a former fishmonger, made a vast fortune from the gambling losses of his club's members.

not practical to enforce. Gambling was ever popular in many countries and cultures. In Britain, by the dawn of the Georgian era in the early 18th century—a time of rapid social and economic change—it was booming. Wagers were legal and enforceable under common law. Placing bets on boxing matches, bear-baiting, and cockfighting was popular with the working class, while the aristocracy favored dice or card tables.

Legislation was introduced not as a response to the moral concerns of social reformers, but due to the increase in gambling disputes being handled by the overstretched courts. The Gaming Act of 1845 ruled that gaming contracts were "null and void," making gambling debts legally unenforceable.

Changing the rules

The 1845 Act did not make wagers illegal. However, it stated that court actions seeking to recover "any sum of money or valuable thing" related to wagers would no longer be permitted—effectively removing gambling from the jurisdiction of the law courts. The legislation was criticized as overly paternalistic and at odds with the principles of free choice. Why, libertarians asked, should people be discouraged from placing a wager of £10 on a sporting event, when they could just as easily lose a stake of £10 by investing it in the stock market?

One effect of the new Act was to deter professional bookmakers (whose rising numbers had stoked the growth of problem gambling in the late 18th century) from allowing bettors to make wagers on credit. A bettor who had lost a bet could no longer be forced by law to pay money owed. So bookmakers began to take cash bets, spurring a growth in cash-betting houses. The 1853 Betting Act suppressed betting houses and forced bookmakers to take their business onto the streets, a practice that was later outlawed by a further Act in 1906.

Liberalizing legislation

In the early part of the 20th century, gambling went underground in the UK and was controlled by criminal gangs. In 1949, a Royal Commission was tasked with investigating betting, lotteries, and gaming. Its conclusions resulted in the 1960 Betting and Gaming Act, which permitted licensed betting places on Britain's high streets, making gambling more widely accessible.

In the 21st century, the UK government decided that gambling should no longer be seen as morally dubious, but encouraged in the same way as other leisure sectors due to its economic potential. The 2005 Gambling Act boosted the industry by regulating online gambling and removing planning obstacles to opening new betting places. It also restored the legal enforceability of wagers that had been removed by the 1845 Act and created the Gambling Commission to regulate commercial gambling. ■

> No Suit shall be brought or maintained in any Court of Law or Equity for recovering any Sum of Money or valuable Thing alleged to be won upon any Wager …
> **Gaming Act, 1845**